

MEMORANDUM OF UNDERSTANDING

BETWEEN MEMORIAL HOSPITAL OF LARAMIE COUNTY D/B/A CHEYENNE REGIONAL MEDICAL CENTER, CHEYENNE FIRE RESCUE, AND AMERICAN MEDICAL RESPONSE

1. Parties. This Memorandum of Understanding (this “MOU”) is made and entered into by and between Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center (“CRMC”), whose address is 214 E. 23rd St, Cheyenne, WY 82001, Cheyenne Fire Rescue (“CFR”), whose address is 415 W. 18th St, Cheyenne, WY 82001, and American Medical Response Ambulance Service, Inc. (“AMR”), whose address is 2542 Old Happy Jack Rd, Cheyenne, WY 82009.

2. Purpose.

CRMC is a non-profit organization that operates an acute care hospital and provides healthcare services to persons in Cheyenne, WY and surrounding communities. CRMC has determined that collaborating with AMR will aid its charitable mission by allowing healthcare providers to share health information and provide more efficient and effective care, thereby improving the health of persons within CRMC’s service area.

CFR is an all-risk fire department that provides numerous types of services to the community and its citizens. With an ever-growing community, Cheyenne Firefighters have become increasingly relied upon, and utilized, for many services.

AMR is an ambulance service that currently operates as the exclusive emergent and non-emergent ambulance transport system in Laramie County, with the exception of the Cheyenne Regional Internal Transport Program.

The purpose of this MOU is to establish the terms and conditions under which the parties will manage mutual care management as it relates to community paramedicine and non-emergency transport.

Notwithstanding anything set forth in this MOU, except for transports performed under the Regional Internal Transport Program, and/or any other services specifically negotiated between the parties during the contract period, AMR shall be the exclusive provider for all ambulance (both emergent and non-emergent, 911 and IFT) transports within Laramie County. Any ambulance transports performed under this MOU shall be in accordance with the terms set forth in the 2022 Laramie County EMS Contract between Cheyenne/Laramie County Emergency Medical Services Joint Powers Board and American Medical Response Ambulance Service, Inc.

3. **Term of MOU.** This MOU is effective upon the date last executed by the duly authorized representatives of the parties to this MOU and the governing bodies of the parties' respective counties or municipalities and shall remain in full force and effect until reevaluation, which will be performed every three (3) years. This Agreement shall be automatically renewed for additional one (1) year terms, until terminated by participating parties.

4. **Payment.** No payment shall be made to any party by any other party because of this MOU.

5. **Responsibilities of CFR/CRMC.**

A. CFR will collaborate with CRMC to establish a community paramedicine program operational within Laramie County. When completed and adopted, CFR and CRMC shall provide Standard Operating Guidelines (SOG's) and/or protocols pertaining to Community EMS to AMR. CFR and CRMC will connect patients to primary care services within the scope of paramedic practice.

B. CFR and CRMC will complete hospital follow-up care to populations at high risk of re-admittance. These populations will include patients with congestive heart failure, chronic obstructive pulmonary disease, and hip/knee replacement patients.

C. CFR and CRMC will collaborate with local public health agencies, home health agencies, health systems, and other providers to integrate services.

D. CFR and CRMC will use the community paramedicine program to provide education and health promotion programs.

E. Ambulance transport. CFR and CRMC's community paramedicine program will NOT provide ambulatory transports to patient populations as AMR is the exclusive ambulatory transport provider within Laramie County (except for transports conducted under the Cheyenne Regional Internal Transport Program and/or any other services specifically negotiated between the parties during the contract period).

6. **Responsibilities of AMR.**

A. Ambulance transport. AMR will continue to provide exclusive ambulance transportation to patients within Laramie County under the scope of its existing contract with Laramie County.

7. **General Provisions.**

A. **Amendments.** Either party may request changes to this MOU. Any changes, modifications, revisions or amendments to this MOU which are mutually agreed upon by and between the parties to this MOU shall be incorporated by written instrument and effective when executed and signed by all parties to this MOU.

B. Applicable Law. The construction, interpretation and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this MOU and over the parties, and the venue shall be the 1st Judicial District, Laramie County, Wyoming.

C. Entirety of Agreement. This MOU, consisting of five (5) pages, represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.

D. Certification about Status with Government Health Programs. All parties individually certify that it, and its employees and/or agents ("Related Persons") (a) are not now debarred and have never been, excluded or otherwise ineligible for participation in any government health care program(s); (b) have not been convicted of a felony offense in the immediately preceding seven (7) years; and (c) are not now subject to, and have no reason to believe that they are subject to, any specific investigation for violation of federal, state, or local criminal or civil law or regulation. A party shall report in writing to the other parties immediately if the said party becomes aware of such action, investigation, or effort to debar or exclude it, or any Related Person, from any government health care program. Failure to disclose any relevant information regarding these matters is reason for immediate termination of this contract with cause at CRMC's sole discretion.

E. Assignment. Neither this MOU, nor any rights or obligations hereunder shall be assigned or delegated by any party without the prior written consent of all other parties.

F. Termination. This MOU may be terminated (a) by any party at any time for failure of any other party to comply with the terms and conditions of this MOU; (b) without cause, by any party upon thirty (30) days written notice, which notice shall be delivered by hand or by certified mail; or (c) upon mutual written agreement by all parties.

G. Invalidity. If any provision of this MOU is held invalid or unenforceable by any court of competent jurisdiction, or if any party is advised of any such actual or potential invalidity or inability to enforce, such holding, or advice shall not invalidate or render unenforceable any other provision hereof. It is the express intent of the parties that the provisions of this MOU are full severable.

H. Discrimination. All parties agree they will not discriminate against any person who performs work under the terms and conditions of this MOU because of race, color, gender, creed, handicapping condition, or national origin.

I. ADA Compliance. All parties agree they will not discriminate against a qualified individual with disability, pursuant to a law as set forth in the Americans with Disabilities Act,

P.L. 101-336, 42 U.S.C § 12101, *et seq.*, as amended, and/or any properly promulgated rules and regulations relating thereto.

J. Governmental/Sovereign Immunity. CRMC, CFR, and AMR do not waive their governmental immunity by entering this MOU, and fully retain all immunities and defenses provided by law with respect to any action based on or occurring as a result of this MOU.

K. Indemnification. Each party to this agreement shall be responsible for any liability arising from its own conduct. Neither party agrees to insure, defend or indemnify the others.

L. Insurance Coverage. All parties to this Agreement shall maintain in full force and effect appropriate general and professional liability insurance in the amount to \$1,000,000 per occurrence and \$3,000,000 per aggregate and other insurance, including workers' compensation protection, unemployment insurance and automobile insurance in the amount of \$1,000,000 per occurrence, as required by law.

M. Third Parties. The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this MOU shall not be construed so as to create such status. The rights, duties and obligations contained in this MOU shall operate only between the parties to the MOU and shall inure solely to the benefit of the parties to this MOU.

N. Force Majeure. No party shall be liable to perform under this MOU if such failure arises out of causes beyond its control, and without the fault or the negligence of said party. Such causes may include, but are not limited to, Acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargos, and unusually severe weather; in which case, however, a failure to perform must be beyond the control and without the fault or the negligence of said party.

O. Notices. All notices required and permitted under this MOU shall be provided at the earliest time possible but in no event less than fourteen (14) days prior to the action, change or other matter requested. In addition, all notices required and permitted under this MOU shall be deemed to have been given, when deposited in the U.S. Mail, properly stamped and addressed to the party for whom intended at such parties' address listed herein, or when delivered personally to such party. A party may change its address for notice hereunder by giving written notice to the other parties.

P. Compliance with Laws. All parties shall comply with all applicable laws, statutes, regulations, and ordinances, whether Federal, State or Local.

Q. Severability. Should any portion of this MOU be judicially determined to be illegal or unenforceable, the remainder of the MOU shall continue in full force and effect, and either party may renegotiate the terms affected by the severance.

R. Signatures. In witness whereof, the parties to this MOU through their duly authorized representatives have executed this MOU on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this MOU as set forth herein.

**Memorial Hospital of Laramie County
d/b/a Cheyenne Regional Medical Center**

By: _____ Date _____

City of Cheyenne, Wyoming (for CFR)

By: _____ Date _____
Patrick Collins, Mayor

ATTEST:

By: _____ Date _____
Kristina Jones, City Clerk

American Medical Response Ambulance Service, Inc.

By: _____ Date _____